



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT 29 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11985

EXPIRATION DATE: January 31, 1998

1. GRANTEE: Shell Chemical Company
Lakeland, Florida
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time shipment of a portable tank containing spent sulphuric acid. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.32(i), 173.242, and 173.315(i).
5. BASIS: This emergency exemption is based on the application of the Shell Chemical Company dated October 21, 1997, submitted in accordance with 49 CFR 107.117 and a determination that it is necessary in order to protect life and property.

HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Sulphuric acid, spent	8	UN1832	II

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7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT specification MC 311 cargo tank except that the specification plate has been removed. For this one-time shipment, the tank will be loaded on a lowboy trailer with appropriate blocking and bracing.

b. The tank is authorized to be transported from Lakeland, Florida to Baton Rouge, Louisiana.

c. CTL Distribution, Inc., Mulberry, Florida is the contract motor carrier authorized to transport the tank.

8. SPECIAL PROVISIONS: Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

MARKING - The tank must be marked on two sides, with letters and numbers at least 2 inches high on a contrasting background "DOT-E 11985".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 29 1997

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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